

23STCV20321 23STCV20321

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-21

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Case Number: 23STCV20321 Hearing Date: July 21, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:09 PM on July 20, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 20, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that Defendants have failed to remediate habitability violations.

Defendants

Eddie Montes, in pro per and Crystal Brianna Montes, in pro per move for leave

to file a Cross-Complaint.

TENTATIVE RULING

Defendants Eddie Montes, in pro per and Crystal Brianna Montes, in pro per's motion for leave to file a Cross-Complaint is GRANTED. Cross-Complainants are to file a stand-alone copy of the Cross-Complaint today, which is deemed to be served as of the date of this order.

ANALYSIS

Motion For Leave
To File Cross-Complaint

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants
Eddie Montes, in pro per and Crystal Brianna Montes, in pro per move for leave to file a Cross-Complaint.

Defendants filed an Answer on April 11, 2024, when they were represented by attorney Tina Abdolhosseini.

Defendants argue: Defendants seek to assert related claims arising from the same subject property, the same landlord-tenant dispute, the same alleged conditions, the same repair and occupancy issues, and the same alleged damage to the property. Defendants did not previously file a cross complaint because they were self-represented, lacked legal training, and did not understand that a separate cross-complaint was required in order to present their own claims in this action. Defendants now seek leave in the interest of justice so that all related claims may be resolved in one case.

Civ. Proc. Code, § 428.50 provides:

(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date for trial.

(c) A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action.

(Civ. Proc. Code, § 428.50(a)-(c)[bold emphasis added].)

Civ. Proc. Code § 426.50 provides:

A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.

(Code Civ. Proc., § 426.50.)

Leave to file a cross-complaint may be granted in the interest of justice at any time during the action. (Civ. Proc. Code, § 428.50(c).)

“A motion to file a cross-complaint at any time during the course of the action must be granted unless bad faith of the moving party is demonstrated where forfeiture would otherwise result. Factors

such as oversight, inadvertence, neglect, mistake or other cause, are insufficient grounds to deny the motion unless accompanied by bad faith.” (Silver Orgs. v. Frank (1990) 217 Cal.App.3d 94, 99 [bold emphasis and underlining added].)

“[The] principle of liberality requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint under this section.” (Foot's Transfer & Storage Co. v. Superior Court (1980) 114 Cal.App.3d 897, 902 [bold emphasis added].)

[D]elay only may constitute the requisite bad faith to preclude the granting of the request to file a cross-complaint when it appears that a delayed cross-complaint, if allowed, would work a substantial injustice to the opposing party and would prejudice that party's position in some way.

But in the case at bench, we fail to perceive any substantial injustice or prejudice to the real party in interest Worth in this litigation by the filing of petitioner Foot's Transfer & Storage's cross-complaint, as belated as it may be [16 months after filing the answer to the complaint]. The correspondence of counsel establishes that [*904] neither side was unaware of the claims of the other. Similarly, the discovery undertaken in 1979 also indicates a lack of any such unawareness.

We hold, therefore, that the evidence to support the trial court's denial of petitioner's motion to file a cross-complaint was insufficient as a matter of law in view of the well established liberality with which section 426.50 of the Code of Civil Procedure is to be applied. It is preferable that the parties have their day in court.

(Foot's Transfer & Storage Co., *supra*, 114 Cal.App.3d 897, 903-04 [bold emphasis and underlining added].)

As Plaintiffs point out, the proposed Cross-Complaint was not submitted to the Court with the moving papers. It is attached for the first time with the Reply. If Plaintiffs truly need more time to review the proposed Cross-Complaint, the Court will

continue the hearing. However, the gist of the proposed Cross-Complaint is alleging damages arising out of the unauthorized occupancy of Plaintiffs Juan Yanez, Jr., Anthony Yanez and Heriberto Montes at the same property which is the subject of the Complaint.

While there was a two-year delay between the time Defendants filed their Answer and the time they now bring this motion, there is currently no trial date set. The Court finds that the pro per Defendants did not act in bad faith in bringing motion, and there is no prejudice to Plaintiffs by virtue of the belated Cross-Complaint.

The motion for leave to file a Cross-Complaint is GRANTED. Cross-Complainants are to file a stand-alone copy of the Cross-Complaint today, which is deemed to be served as of the date of this order.